



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11221
(FIRST REVISION)

MAY 1 1 1996

EXPIRATION DATE: April 30, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Matrix Construction, Inc., Anchorage, Alaska
(See Appendix A of this exemption).
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce by helicopter of a Division 2.1 material, in a DOT-Specification 51 portable tank meeting all DOT requirements. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.101, Column (9B).
5. BASIS. This exemption is based on the application of Matrix Construction dated April 23, 1996, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Propane	2.1	UN1978	NA

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging is a DOT Specification 51 portable tank meeting all requirements of 49 CFR 178.145. This exemption allows the transportation of propane in a DOT 51 portable tank to be slung from a helicopter.

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8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. This exemption authorizes the carriage of portable tanks by Alaska Helicopters, Inc., Anchorage, Alaska, as an external (sling) load in accordance with 14 CFR Part 13 to remote access locations within the State of Alaska. All flight paths must avoid populated ground areas and high-traffic flight corridors. This exemption may be extended to other carriers specifically identified to and acknowledged in writing by the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo only aircraft.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.106 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA